

D. White
Date: 6/14/2016

CONTRACT NO. _____

**AGREEMENT BETWEEN THE CITY OF CHEYENNE
AND THE CHEYENNE ANIMAL SHELTER/SERVICES**

1. **Parties.** The parties to this Agreement are the City of Cheyenne, a municipality duly organized and existing under the laws of the State of Wyoming, hereafter "City," whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and the Cheyenne Animal Shelter/Services, a non-profit Wyoming corporation organized and existing under the laws of the State of Wyoming, hereafter "Contractor," whose address is 800 Southwest Drive, Cheyenne, Wyoming 82007.
2. **Purpose of Agreement.** The purpose of this Agreement is to authorize the Contractor to furnish the City with animal shelter services as set forth in this Agreement.
3. **Term.** This Agreement is effective upon approval and execution by the parties. The term of this Agreement shall be from July 1, 2016, through June 30, 2017.
4. **Payment.** City agrees to pay Twenty-Six Thousand Six Hundred Sixty-Six Dollars and Sixty-Seven Cents (\$26,666.67) per month for the services described herein. In no event shall the amount paid under this Agreement exceed Three Hundred Twenty Thousand Dollars (\$320,000.00) for the term of this Agreement. No payment shall be rendered for services furnished prior to the effective date of this Agreement.
5. **City's Responsibilities.** The City shall make payment as agreed in this Agreement.
6. **Contractor's Responsibilities.** Contractor shall provide the following services during the term of this Agreement:
 - a. Provide housing and adequate care for all animals placed under its custody, as limited by fiscal constraints;
 - b. Maintain financial records in accordance with generally accepted accounting principles;
 - c. Permit the City, at its own expense and at all reasonable times, to inspect and audit financial records of Contractor;
 - d. Pay the daily operating expenses of the animal shelter;
 - e. Take reasonable steps to spay or neuter animals before adoption;

- f. Maintain a reasonable and adequate schedule for the operation of the animal shelter;
- g. Provide periodic listings of all lost and found animals handled by the Contractor; and
- h. Conduct fund raising activities, public education programs, and any other programs to further the objectives of the Contractor and the City.

7. **Special Provisions.**

- a. The Contractor must provide insurance coverage as follows:
 - i. **Commercial General Liability Insurance:** Contractor must provide coverage against claims arising out of bodily injury, illness and death, and from damage to or destruction of property of others, including loss of use thereof, with minimum limits of \$1,000,000.00 per occurrence and \$2,000,000.00 aggregate, for the entire term of this Agreement.
 - ii. **Business Automobile Insurance:** Contractor must provide coverage for bodily injury and property damage arising out of the use of an automobile, including owned, non-owned and hired vehicles with minimum limits of \$1,000,000.00 per accident, for the entire term of this Agreement.
 - iii. **Workers' Compensation:** Contractor must provide proof of coverage in effect as required by Wyoming law, for all employees or agents providing services under this Agreement. Contractor must provide proof of workers' compensation or employer's liability insurance coverage to the City.
- b. The City shall be named as an additional insured by endorsement on Contractor's insurance policies, with the exception of workers' compensation, and Contractor shall furnish the City with a copy of the endorsements.
- c. Contractor shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of this Agreement. It shall be an affirmative obligation upon Contractor to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, Contractor shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Contractor's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A.M. Best rating of A- (Excellent).

d. The Contractor shall provide a copy of this Agreement to its insurance providers. Contractor shall advise the City in writing of any difficulties in obtaining the required insurance coverage.

e. It is mutually agreed and understood that when the animal shelter is at maximum capacity and it becomes necessary to impound an animal presenting a danger to the public, the Contractor is authorized to make space for such animal or animals, by releasing to the custody of the owner, an animal or animals which poses less of a hazard to the public.

f. All donations, fees and other monies raised by the Contractor, including revenue generated by any agreement with a third party, remains the sole property of the Contractor.

g. It is mutually agreed and understood that at the end of this Agreement, all unexpended funds shall be placed in a fund for improvement of the animal shelter facilities; such funds shall not be deemed property of the City.

8. General Provisions.

a. Amendments. Any changes, modifications, revisions or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed and signed by all parties to this Agreement.

b. Applicable Law. The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties, and the venue shall be in the First Judicial District, Laramie County, Wyoming.

c. Compliance with Laws. The Contractor shall keep informed of and comply with all applicable federal, state and local laws and regulations in the performance of this Agreement.

d. Entirety of Agreement. This Agreement, consisting of five pages, represents the entire and integrated agreement between the parties and supersedes all prior negotiations, representations and agreements, whether written or oral.

e. Indemnification/Hold Harmless. The Contractor agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) Contractor's breach of any term or provision of this Agreement, or (2) any negligent or wrongful act, error or omission by Contractor, or its employees or subcontractors in the performance of this Agreement. Contractor acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

f. Independent Contractor. The Contractor shall function as an independent contractor for the purposes of this Agreement. The Contractor shall assume sole responsibility for any debts or liabilities that may be incurred by the Contractor in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Contractor or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.

g. Notice. All notices arising out of or from the provisions of this Agreement shall be in writing and given to the parties either by regular mail or delivery in person.

h. Nondiscrimination. The Contractor shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act, Wyo. Stat. § 27-9-105, *et seq.*, and the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.* The Contractor shall assure that no person is subjected to discrimination because of age, sex, race, religion, national origin or disability in connection with the performance of this Agreement.

i. Prior Approval. This Agreement shall not be binding upon either party, no services shall be performed under the terms of this Agreement nor shall payment be made until this Agreement has been reduced to writing and approved by all necessary authorities.

j. Governmental Immunity. The City of Cheyenne expressly reserves the right to invoke governmental immunity for any claim arising out of this Agreement pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*

k. Termination. The City may terminate this Agreement for cause immediately without notice or liability in the event the Contractor fails to perform. Either party may terminate this Agreement without cause upon sixty (60) days written notice.

9. **Signatures.** In witness thereof, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Agreement.

CITY OF CHEYENNE, WYOMING

Date

Richard L. Kaysen, Mayor

(SEAL)

Attest:

Carol Intlekofer, City Clerk

CHEYENNE ANIMAL SHELTER/SERVICES

Date

President

Attest:

Secretary